

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 16, 2026, AT 8:30 A.M.**

2. M-CV-0095391 LEE'S ACCU-TECH SERVICE v. SLAUGH, DALE

Defendants' Motion to Quash Service of Summons

Defendants move to quash the service of summons pursuant to Code of Civil Procedure section 418.10.

Plaintiff opposes on three grounds: one, defendants appeared in this action by filing their motion to quash; two, when the motion was filed there were no proofs of service filed with the court; and three, plaintiff served defendants by mail and e-mail.

First, the filing of a motion to quash does not constitute as appearing in the action. (Code Civ. Proc., § 418.10, subd. (d).)

Second, although plaintiff correctly points out that no proofs of service were filed with the court when defendants filed their motion, plaintiff subsequently filed two proofs of service with the court on May 1, 2026. The court therefore analyzes these proofs of service because they allege the same manner of service that defendants complain about.

Third, the proofs of service do not sufficiently establish defendants were properly served. Service of summons and complaint by mail is "is deemed complete on the date a written acknowledgment of receipt of summons is executed, if such acknowledgment thereafter is returned to the sender." (Code Civ. Proc., § 415.30.) Here, the proofs of service filed with the court do not indicate any written acknowledgment of receipt of summons was served on defendants. Moreover, defendants contend they did not sign nor return any written acknowledgement of receipt of summons.

Accordingly, defendants' motion to quash service of summons is granted.

3. M-CV-0095721 MARIE GALLAGHER 2003 v. GALLAGHER, RICHARD

Motion to Stay

Appearances of the parties are required at the hearing.

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